

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Muhammad Abdul Hafiz

Civil Revision No. 1084 of 1995

Nim Chand Halder being dead his legal
heirs 1(ka) Samir Ranjan Halder and
others
Plaintiffs-Appellants- Petitioners

Versus

Debendranath Sikder being dead his legal
heirs 1(ka) Jatermay Sikder and others
Defendants-Respondents-Opposite
Parties

Mr. Sadananda Rana, Advocate
for the plaintiff-appellant- petitioners

Mr. Prabir Halder, Advocate
for the defendants-respondents-opposite
parties

Judgment on: 12.11.2023

This Rule was issued calling upon the opposite party Nos. 1-6 to show cause as to why the impugned Judgment and Decree dated 06.7.1994 passed by the learned Sub-ordinate Judge, now Joint District Judge, 2nd Court, Pirojpur in Title Appeal No. 144 of 1988 allowing the appeal in part and thereby reversing the Judgment and Decree dated 10.7.1988 passed by the learned Assistant Judge, Nazirpur, Pirojpur in Title Suit No. 137 of 1984 dismissing the suit should not be set aside and/or such other or

further order or orders passed as to this Court may seem fit and proper.

The petitioner as plaintiff instituted a suit being Title Suit No. 137 of 1984 in the Court of learned Assistant Judge, Nazirpur, Pirojpur against the defendants-opposite parties praying for declaration of title to the 'Ka' schedule land to the plaintiff and for declaration that the 'Ka' schedule deed to the plaintiff is fraudulent, illegal, void and not binding upon the plaintiff and also for recovery of Khas possession of 'Ga' schedule land to the plaintiff, it found to be dispossessed contending, inter-alia that the suit land measuring an area of 3.73 acres appertaining to C.S. Khatian No. 23 of Mouza-Suigkhali, Police Station-Nazirpur originally belonged to Kali Kumar Halder as Karsha right, that Kali Kumar died leaving two sons Sudaram and Aswini Kumar to inherit his interest. Aswini Kumar died leaving his widow Bilashi to inherit his share. Sadaram died leaving his only son, the plaintiff, to inherit his interest. The suit land was put to auction in Rent Execution Case No. 445 of 1941 arising out of Rent Suit No. 2543 of 1940 and the plaintiff sent Fanindranath Mondal to purchase the auction in the name of the plaintiff but Fanindranath Mondal purchased the same on 10.7.1941 fraudulently in his own name. Fanindranath Mondal executed and registered a deed of

relinquishment on 19.3.1947 in favour of the plaintiff in respect of the suit land and immediately after death of Aswini Kumar his widow Bilash Bewa was remarried to Agni Kumar Sikder of village Jugia and died in the house of Agni kumar. It now transpires that Bilashi Bewa executed and registered a fraudulent sale deed without legal necessity on 13.3.1923 in respect of $186\frac{1}{2}$ decimals land, that is 08 (eight) Annas shares of the suit land in favour of Agni Kumar Sikder who died leaving two sons the defendant Nos. 1 and 2 from his first wife. On death of Bilashi Bewa the plaintiff is also the Reversioner of her former husband Aswini Kumar. R.S. and S.A. records of right have been wrongly prepared in the name of predecessors of defendant Nos. 1-6.

The defendant- respondent Nos. 1-6 contested the suit by filing a joint written statement denying all the material allegations to the plaint and contending, inter alia, that the suit Khatian land originally belonged to Kali Kumar who died leaving behind two sons namely Sudaram and Aswini Kumar to inherit his interest. Aswini Kumar died in childless leaving his widow Bilashi Bewa to inherit his share. Bilashi Bewa sold her entire share for legal necessary at a consideration of Taka 3000/- (taka three thousand) only on 13.3.1923 to Agni Kumar Sikder who used to pay rent of the same through Sudaram. A Rent Suit being No. 236 of 1928 was

filed in the Court of learned 2nd Munsif, Pirojpur in respect of the suit land and Bilashi Bewa filed a written statement in the said Rent Suit admitting the title of Agni kumar by virtue of kabala dated 13.3.1923. Thereafter Agni Kuamr having had the knowledge of auction sale of the suit land filed Miscellaneous Case No. 24 of 1923 for setting aside the auction and the superior land lords compromised the case with Agni kumar by solemana on 20.7.1929 admitting the title of Agni Kumar by purchase. Thereafter Fani Bhuson Mondal filed Suit No. 355 of 1941 in the Court of learned Second Munsiff, Pirojpur against the filing of decretal dues by Agni Kumar who filed a written objection therein and the case ended on contest in which title of Agni kumar was affirmed. Agni Kumar died leaving two sons the defendant No. 1 and Dhirendranath who was missing since 1965 for more than 07 (seven) years and as a result of his civil death his share was inherited by his brother, the defendant Nos. 1. Thereafter the defendant No. 1 transferred 1.43 decimals of land to other defendants and has been possessing the rest .47 decimals of land.

The learned Assistant Judge, Nazirpur, Pirojpur dismissed the suit by his Judgment and Decree dated 10.7.1988 and thus the plaintiff as appellant preferred title appeal being Title Appeal No. 144 of 1988 before the Court of learned District Judge, Pirojpur

and on transfer the learned Sub-ordinate Judge, now Joint District Judge, 2nd Court, Pirojpur allowed the appeal in part and hence the plaintiff-appellant as petitioner moved this application under Section 115 (1) of the Code of Civil Procedure, 1908 before this Court and obtained this Rule.

During pendency of the Rule the petitioner and the opposite party died and accordingly their heirs were substituted.

Mr. Sadananda Rana, learned Advocate for the plaintiff-appellant-petitioners, submits that the certified copy of the registered deed dated 13.3.1923 Exhibit 'Ka' was collected on 26.11.1987 in connection of Title Suit No. 137 of 1984 executed by Bilashi Bewa in favour of Agni Sikder in Miscellaneous Case No. 355 of 1941, judgment dated 12.11.1941 finding that, "the kabala Agni Sikder has claimed to have purchased the property from Bilashmoni to Exhibit. 1 it has been filed in the Court by Bilashmoni" Accordingly, Section 52(1)(b) of the Registration Act, 1908 says "a receipt of such document shall be given by the Registering Officer the person presenting the same. Accordingly, consideration money was not paid by the purchaser Agni Kumar in favour of Bilashmoni. The certified copy of the registered deed dated 13.3.1923 mentioned 03(three) conditions that payment of dues of Malek rent, maintenance that payment of dues of Malek

rent, maintenance of Bilashmoni and her mother-in-law was totally false. Moreover in paragraph No. 13 of the written statement it has been stated that “বিলাসী বেওয়ার মৃত স্বামীর পরিত্যক্ত ভূমি ভোগ দখল করিতে থাকা অবস্থায় স্বামীর পরিত্যক্ত ভূমি ভোগ দখল নিয়া বিরোধ সৃষ্টি হইলে অত্র বাদীর পূর্ববর্তীর পিতা সাদারাম ওরফে সদাই হালদার বিলাসী বেওয়াকে মারধর করিলে প্রোক্ত বিলাসী বেওয়া তৎকালীন স্থানীয় পিরোজপুর ফৌজদারী আদালতে দণ্ডবিধির ৩২৪ ধারামতে মোকদ্দমা দায়ের করেন। প্রোক্ত ফৌজদারী মোকদ্দমা আপোষ নিষ্পত্তি হয় এবং তাহাতে কথা থাকে যে, অশ্বিনী হালদার ও সদাই হালদারের মাতার ভরন পোষনের জন্য জীবিতকাল পর্যন্ত ১ বিঘা জমি রাখিয়া বাকী সম্পত্তি তুল্যাংশে ভোগ দখল করিবেন। ইত্যাকারে প্রোক্ত বিলাসী বেওয়া তাহার অংশের ভূমি ভোগ দখল করিতে থাকেন। তৎপর বিলাসীর শ্বাশুড়ী কিছুকাল পরে মারা যান। বিলাসী তাহার স্বামীর পরিত্যক্ত ভূমি ভোগ দখল করিতে থাকিয়া স্বামীর পূর্ব ঋন ও সংসারের যাবতীয় খরচাদি আদায়ের জন্য মং ৩০০/- টাকা (তিন শত) টাকা বহার মূল্যে অত্র বিবাদীর পূর্ববর্তী অগ্নিকুমার বরাবরে বিগত ১৩২৯ সালের ২৯শে ফাল্গুন ইং ১৩-০৩-২০২৩ইং তারিখের কবলা মূল্যে ১৮৬^১/_২ শতাংশ ভূমির দখল প্রদান করিয়া নিঃস্বত্ববর্তী ও দখলহীনা হন।” He further submits that at the time of registration Bilashmoni was not in possession of the land in question and accordingly there had been no scope to handover the possession of the land in question and hence the deed is in question has been registered collusively and by practicing fraud and as such the certified copy of the registered deed is void-ab-initio and the subsequent deeds khatians etc. have no legal effect as being created on the basis of void document and hence the

Appellate Court below while decreeing the suit in part in his findings says, “বিলাসমনি দত্তা ১৩/৩/১৯২৩ইং তারিখের অগ্নীকুমার সিকদার বরাবরীয় কবলাটি বৈধ কারনে (for legal necessity) সম্পাদিত ও রেজিষ্ট্রিকৃত হইয়াছিল।” is not sustainable for non consideration of the documentary evidences. He next submits that the Exhibit Gha dated 20.7.1929 in Case No. 24 of 1929 solenama application filed by Agni Sikder putting signature only of Agni Sikder in Exhibit Ga and Miscellaneous Case No. 355 of 1941 and the judgment dated 12.11.1941 passed by 2nd Court of Munsif, Bakergonj, Pirojpur stated that “that sale was set aside on compromise between D.Hrs and Agni Sikder.” That it is the solenama there has been only signed by Agni Sikder, D.Hrs absent no Mouja, Khatian No. Dag Nos. or registered deed No. 1150 dated 13.3.1923 and accordingly on the face of record the solenama is a forged document and in this regard law has been cited in 37DLR (AD) 177 says, “A man who is a party to fraud cannot take advantage of his own fraud” and 18 BLD (AD) 258 says, “Fraud vitiates everything. The plaintiff succeeded to prove committing fraud defendant in executing and registering the impugned deed, it is vitiated the entire transaction.” He next submits that P.W. 1 as plaintiff in his deposition says, “অশ্বিনীর জীবদশায় অশ্বিনী যে জমি দখল করিত তাহা আমি পৃথক (গ) তপশীলে বর্ণনা করিয়া অশ্বিনীর মৃত্যুর পর আমি একখন্ড নালিশী জমি ভোগ দখল করিতেছি। খাজনা দিয়া

দাখিলা পাইয়াছি এবং দাখিলা করিয়াছি।” rent receipt which was marked as Exhibit- 5, 5(ka) series, in this regard the law has been settled in 35 DLR (AD) 216 paragraph No. 8 of the law says, “rent receipts are evidence of possession and may be used as collateral evidence of possession and may be used as collateral evidence of title since possession generally follows title.” P.W. 1 in his deposition stated ১৩./৩/২০২৩ইং তারিখের কবলা, পনবিহীন, যোগাযোগী।” P.W. 2 in his deposition stated, “নালিশী জমি আমার জমির উত্তরে ১ খন্ডের পর অবস্থিত। নালিশী জমি একখন্ড নিমচাঁদ দখল করে।” P.W. 3 in his deposition stated, “অত্র মোকদ্দমার বাদী বিবাদী ও নালিশী জমি চিনি। নালিশী জমি এক খন্ড নিমচাদ দখল করে।” written statement defendant Nos. 1, 8 to 12 stated in paragraph No. 13 “সদারম ওরফে সদাই হালদার মারফত প্রোক্ত বিবাদীর পূর্ববর্তী পিতা খাজনার টাকা আদায় দেন।” He next submits that the Kabala dated 13.03.1923 was collusively and fraudulently created by Bilashi Bewa after her re-marriage with Agni Kumar and as such the said deed created no right, title and interest of the land covered by the deed in favour of Agni Kumar. He lastly submits that the learned Courts below committed an error of law in attributing legal necessity to the alleged Kabala dated 13.03.1923 depending only on the recitals of the deed without considering any of the oral evidence. The contesting defendants have completely failed to discharge the onus of proving legal necessity for the alleged transfer dated 13.3.1923

and as such both the Courts below committed an error of law failing to consider those aspects of the matter and attributing legal necessity for the alleged transfer.

Mr. Prabir Halder, learned Advocate for the defendants-respondents-opposite parties, submits that two brothers namely Sadaram Halder and Aswini Kumar Halder inherited 3.73 acres of land in equal share from their deceased father Kali Kumar Halder. Therefore, each brother got 1.8650 acres. Aswini died issueless leaving his widow Bilashmoni. Hence, life interest was accrued over her deceased husband's share in 1.8850 acres. Widow Bilashmoni in order to meet up her legal necessities viz:

- (i) To pay up loan borrowed by her deceased husband by executing a deed of mortgage dated 08.07.1915 (Ext-'Kha')
- (ii) To pay rent to the superior landlord and
- (iii) To meet up maintenance cost of herself and of her old mother-in-law.

transferred entire 1.8650 acres in favour of one Agni Kumar Sikder by registered kabala dated 13.03.1923 (Ext-'Ka')

He next submits that the Trial Court as well as the Court of Appeal below concurrently found and held that the kabala deed

dated 13.03.2023 was and is a valid deed as it was executed by widow of Aswini Kumar for legal necessity. He further submits that it has been well settled by our Apex Court in various pronouncements that concurrent findings of facts cannot be interfered with the revision reported in 18 ALR (AD)- 34 para 22 and 62 DLR (AD)242 para 12 and 43 DLR (AD) 82 para 8. He next submits that no issue was framed on the point as to whether the kabala deed dated 13.03.2023 was illegal, void, collusive, fraudulent, without consideration and was not binding upon the plaintiffs. Order XIV, rule 6 of the Code of Civil Procedure casts a duty upon the learned lawyer of a party to urge the Court to frame an issue on a point of fact or of law upon which he seeks a decision of the Court. If it is not done it would be deemed that the party has waived the issue and is stopped in urging and/or advancing argument on such point of fact or of law upon which issue has not been framed. In the instant case no issue in respect of kabala deed dated 13.03.1923 (Ext-‘Ka’) has been framed and the learned lawyer for the plaintiff also did not take any step therefore. So the plaintiff has got no right to advance arguments over the matter at this revisional stage reported in 3 DLR(HC) 225 at page No. 228-29, AIR 1997 Cal-386 para No. 3, 25 BCR (AD) 16 para No. 11 and 3 ADC-181 para No.06 He next submits that bundle of facts

culminates to issues in a suit. The said facts instigate as person to bring a suit. The cardinal facts which prompted the plaintiff/petitioner in instituting the suit has been stated in paragraph 9 to the plaint. As per the statement, cause of action of the suit is that on the 2nd Ashar of 1392 B.S. pursuant to wrong record of rights the defendant disowned right and title of the plaintiff in the suit land. In paragraph No. 5 to the plaint, the plaintiff has given statements in respect of the kabala deed dated 13.03.1923 as to how and why the deed illegal, void, collusive, fraudulent and not binding. In order to prove the said facts, oral evidence adduced by the plaintiffs are as follows:-

(a) P.W.1 Chief (Page No.3) of depositions-

“অদ্য হইত ৩ বৎসর পূর্বে নালিশী জমি ১/২ নং বিবাদী তাহাদর নামে রেকর্ডীয় বিষয় বলিয়া নাঃ জমি দাবী করিলে আমি ভ্রমাত্মক হাল এস, এ, ও আর, এস, রেকর্ডীয় বিক্রয় জানিতে পারি।” which is not supported by the P.W.2 and 3.

And in respect of the kabala dated 13.03.1923 evidence filed by the plaintiff are as follows:-

P.W.1 Chief:- ইহা সত্য নহে যে, বিলাশী ১৩/৩/২৩ তারিখের কবলায় ১.৮৬ $\frac{১}{২}$ শতাংশ জমি ১/২ নং বিবাদীর পিতা অগ্নী কুমারের নিকট ৩০০ টাকা বিক্রয় করেছে। ১৩/৩/২৩ তারিখের ভাক্ত, পন বিহীন, যোগা-যাগী। ইহা সত্য নহে যে, বিলাশী দেনার টাকা কর্তৃক খাতের টাকা পরিশোধের

ও শ্বাস্তরীর ভরনপাষনের জন্য ও নিজের ভরন পোষনের জন্য উক্ত
কবলামুলে জমি বিক্রয় । which is not supported by the P.W.

2 and 3.

Therefore, the plaintiffs-petitioners have miserably failed to prove cause of action of the suit by adducing well corroborative evidence and the learned Trial Court correctly dismissed the suit but the learned Appellate Court below without considering this aspect and the aspect of dispossession of the plaintiff declared title in favour of the plaintiff in respect of $1.86\frac{1}{2}$ acres of land. As there was no prayer for recovery of possession, the suit was not maintainable. In support of his submissions he has referred to the case reported in 1 BLC-503 para No.13 and 49 DLR (AD)- 99 para No.8. He next submits that on the point whether the deed dated 13.3.2023 was acted upon or not. He said yes, the deed was very well acted upon. The following facts prove the same.

In paragraph No. 4 to the plaint it has been stated that “সাবেক ৪/৫/৮ নং দাগের ভূমি রিভিশনাল সেটেলমেন্ট জরীপে স্টেশন নাজিরপুর অর্ন্তগত জে, এল, ৩০ নং শিংখালী মৌজায় হাল ৭/৮/১০ দাগে পরিমিত ভূমি কিঞ্চিৎ বৃদ্ধি প্রাপ্ত ৩.৮০ শতাংশ ভূমির বাবদ আর, এস, ৫৬ নং খতিয়ানে এবং পরবর্তী স্টেট একুইজিশন জরীপে এস, এ, ৫২ নং খতিয়ানে প্রকৃত স্বত্ত্ব দখলের বিপর্যয় নিতান্ত অন্যায় ও অশুদ্ধ মতে নিঃস্বত্ত্ব দখলহীন ১/২ নং বিবাদী এবং ৩/৬ নং বিবাদী গনের পূর্ববর্তী ফনীন্দ্র ভূষণ ও যামিনী সুন্দরীর নামে রেকর্ড হয় ।” He then submits that R.S. Khatian No. 56 has been

exhibited by plaintiff vide Ext. No.7. From this record of rights it appears that half of 3.80 acres of suit land has been recorded in the name of one Fanindra Bhushan and rest half has been recorded in the name of the defendant Nos. 1 and 2 and of their mother Jamini Shundari. Learned Trial Court found that “ এবং অগ্নী কুমার শিকদার এবং ২ পুত্র দেবেন্দ্র, ধীরেন্দ্র, ও স্ত্রী জামিনী সুন্দরীর প্রত্যেকের নামে হিসেবে রেকর্ড হইয়াছে। বাদী পক্ষ হইত অত্র মোকদ্দমায় আর, এস, ৫৬ নং খতিয়ানের সহিত মোহরকৃত নকল দাখিল করা হইয়াছে যাহা প্রদর্শনী নং ৭ হিসাব চিহ্নিত হইয়াছে। প্রদর্শনী নং ৭ দৃষ্টে দেখা যায় যে নালিশী ৩.৮০ শতক জমি আর, এস, ৫৬ নং খতিয়ান ফনিন্দ্র ভূষনের নামে। আট আনা ও অগ্নী কুমারের দুই পুত্র দেবেন্দ্র ও ধীরেন্দ্রের নামে ও স্ত্রী যামিনী সুন্দরীর নামে। আট আনা রেকর্ড হয়। বাদী পক্ষ হইতে আর,এস. ৫৬ নং খতিয়ানে এক সহি মোহর দাখিল করিলেও এস,এ ৫২ নং খতিয়ানে সহি মোহরকৃত নকল দাখিল করেন নাই যাহা একান্ত প্রয়োজন ছিল। বাদী পক্ষের আরও বক্তব্য হইতেছে যে, অশ্বিনী কুমারের স্ত্রী বিলাসী বেওয়া অশ্বিনী কুমারের মৃত্যুর পর অগ্নী কুমার শিকদার এর সহিত বিবাহ বন্ধন আবদ্ধ হয়।” Half of 6.80 acres of suit land was recorded in the name of the defendants and of their mother during R.S. operation in 1946-47 and the said record must have been prepared pursuant to kabala deed dated 13.03.1923 (Ext-‘ka’). He further submits that Agni Kumar by filing kabala dated 13.03.1923 vide Ext No. 1 in Misc. Case No. 355/1941 (Ext No. ‘ga’) before the Court of 2nd Munsif, Pirojpur got order in his favour. The said court held that the deed was genuine. He next submits that the Exhibit- ‘Kha’ is a petition of compromise (solenama) filed in suit No. 24/29 before the Court of

2nd Munsif, Pirojpur wherefrom it appears that Bilashi Bawa transferred her eight Annas share and in Title Suit No.236/28, Bilashmoni as defendant No. 2 filed written statement (Exhibit-Umo) stating she executed kabala deed transferring her share in favour Agni Kumar. Therefore, since deed was earlier produced and exhibited in Civil Courts which found it to be a genuine one and record of rights has been prepared pursuant to the deed it was and is well acted upon and as per Section 90 of the Evidence Act custody of 30 years old documents is immaterial. He also submits that the plaintiffs case is that widow Bilashmoni got second marriage with Agni Kumar and the Court of Appeal below has held that “বরং বিলাশী বেওয়া অগ্নী কুমারের সাথে দ্বিতীয় বিবাহ বসিয়াছে ইহা স্বীকার করিয়াছে।” and in the last part of paragraph No. 2 of the plaint the plaintiffs have alleged saying “অশ্বীনী কুমার নিঃসন্তান অবস্থায় স্ত্রী বিলাসী বেওয়াকে রাখিয়া লোকান্তরিত হওয়ার অব্যবহিত পরই উক্ত বিলাশী বেওয়া জুগিয়া সাকিনের জনৈক অগ্নী কুমার শিকদারের সহিত পাগল চাঁদের মতে বিবাহ বন্ধনে আবদ্ধ হয়।” Therefore, it can be well said that custody of wife is the custody of the husband. He lastly submits that it is the well settled and established principle of law that in order to get a decree the plaintiff has to prove his own case by producing trustworthy oral evidence supported by documentary evidence. Defence witness how so ever weak it may be, the plaintiff cannot get a decree on the basis of weakness of defense evidence. Since in the instant case

the plaintiff has miserably failed to adduce oral and documentary evidence. The Rule is liable to be discharged and the judgment of the Trial Court to be restored. In support of his submissions he has referred to the Case of reported in 18 ALR (AD)-25 Para 12.

Heard the learned Advocates for both the parties and perused the record.

Now, only question whether the kabala deed dated 13.3.1923 is valid or not. The Trial Court as well as the Court of Appeal below concurrently found and held that the kabala deed dated 13.3.1923 is a valid deed as it was executed by the widow of Aswini Kumar for legal necessity. There is no misreading or non-consideration of evidence by the Courts below and the plaintiffs-petitioners could not point out any misreading and non-consideration of evidence on record in respect of kabala deed dated 13.3.1923 and thus this Court cannot interfere with the concurrent findings of facts.

Considering the facts and circumstances of the case, I find no substance in the Rule, rather I find substance in the submissions of the learned Advocate for the defendants-opposite parties.

In the result, the Rule is discharged without any order as to costs.

The impugned Judgment and Decree dated 06.7.1994 passed by the learned Sub-ordinate Judge, now Joint District Judge, 2nd Court, Pirojpur in Title Appeal No. 144 of 1988 is hereby upheld.

Send down the lower Courts record with a copy of this Judgment to the Courts below at once.